

,Stereo. HCJDA 38  
**JUDGMENT SHEET**  
**LAHORE HIGH COURT, LAHORE**  
**JUDICIAL DEPARTMENT**

**Writ Petition No. 63301/2021**

**Nasreen Bibi**

**Vs.**

**Station House Officer etc.**

**JUDGMENT**

|                           |                                                     |
|---------------------------|-----------------------------------------------------|
| <b>Date of hearing:</b>   | <b>30.06.2022</b>                                   |
| For the Petitioner:       | M/s Javed Rehmat Gill and Wicter Amanat, Advocates. |
| For Respondents No.1 & 2: | Mr. Sharafat Khan, Additional Advocate General.     |
| For Respondent No.3:      | M/s Naseeb Anjum and Aftab Ahmad Toor, Advocates.   |
| <i>Amicus curiae:</i>     | Mr. Saad Rasool, Advocate.                          |

**Tariq Saleem Sheikh, J.**– The Petitioner alleges that on 21.6.2021 Respondent No.3 abducted her 13-year-old daughter Aleeza alias Liza with the help of his cohorts and then forcibly married her. She claims that the marriage is void because it was not performed in accordance with the mandatory procedure prescribed by the Christian Marriage Act, 1872 (the “CMA”), and because Aleeza was a minor, her father’s consent was not obtained as required under section 19 of the Act. Then there was the impediment of consanguinity and affinity. The Petitioner’s case is that Respondent No.3 is keeping Aleeza in illegal custody. She seeks her recovery through this petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the “Constitution”).

2. This Court admitted this petition to regular hearing and appointed Mr. Saad Rasool, Advocate, as *amicus curiae* and requested Rt. Rev. Archbishop Sebastian Francis Shaw and Rt. Rev. Bishop Irfan Jamil for assistance who attended the proceedings and presented written submissions through Mr. Kashif Alexander, Advocate.

***The submissions***

3. The Petitioner's counsel submits that the parties are Christians and governed by special law – the CMA. He impugns the marriage between Respondent No.3 and Aleeza on the grounds mentioned in the introductory paragraph of this judgment. To prove that Aleeza is just 13, he has produced her school certificate and the Family Registration Certificate dated 9.2.2016 issued by the National Database & Registration Authority (NADRA).

4. The Additional Advocate General has opposed this petition. He states that it is a case of runaway marriage. The Petitioner lodged FIR No. 474/2021 at Police Station Saddar Narowal under section 365-B PPC against Respondent No.3 and others regarding Aleeza's abduction which the police recommended for cancellation after an extensive investigation.

5. Respondent No.3 questions the authenticity of Aleeza's birth certificates produced by the Petitioner and contends that she is *sui juris*. He maintains that she contracted marriage with him of her free will and volition according to the Christian rites on 21.6.2021. Respondent No.3 also denies the allegation of abduction and states that the girl has also got her statement under section 164 Cr.P.C. recorded with the Area Magistrate to refute it. Lastly, he claims that there is no violation of the CMA which may make the marriage null and void.

6. The Archbishop of Archdiocese of Lahore, Rt. Rev. Sebastian Francis Shaw, submits that marriage in the Roman Catholic Church is known as holy matrimony. As per Canon 1055, it is the "covenant by which a man and woman establish between themselves a partnership for the whole of life and which is ordered by its nature to the good of the spouses and the procreation and education of offspring." It is regarded as a sacrament between those baptized because Christ ordained it and is a vehicle for divine grace and a representation of spiritual truth. Historically, before the 1917 Code of Canon Law, the Catholic Church's minimum age for a dissoluble betrothal (*sponsalia de futuro*) was seven years while the minimum age for a valid marriage was puberty – which was reckoned as 14 for males and 12 for females. The 1917 Code of Canon Law increased the minimum age for a valid marriage to 16 for males and 14 for females. The 1983 Code of Canon

Law has maintained those age limits. The Archbishop submits that the Catholic Church emphasizes four elements for a valid marriage: (i) the spouses are free to marry; (ii) they exchange their consent freely; (iii) they intend to marry for life, to be faithful to each other and to be open to children; and (iv) they give their consent in the presence of two witnesses and a duly authorized Church Minister. The Archbishop further states that the marriage has the favour of law under Canon 1060 so it must be regarded as valid unless proved otherwise. The Catholic Church also recognizes the concept of putative marriage which connotes a union entered into in good faith by at least one of the parties but rendered legally invalid due to a technical impediment, such as a pre-existent marriage of one of the parties. The spouses cannot remarry without seeking an annulment by establishing invalidity of the first marriage because the children are considered legitimate. Only those marriages are reckoned as putative which have the appearance of validity. Consequently, if the form is completely lacking, the marriage is not putative and does not enjoy the presumption of validity. The marriage can be recognized if the obstacle is removed or the Church grants a dispensation.

7. Rt. Rev. Bishop Irfan Jamil of the Church of Pakistan<sup>1</sup>, Lahore Diocese, submits that the Protestants regard marriage as a rite, not a sacrament. Many evangelical churches prefer the word “ordinance” which can be defined as “God-ordained ceremony.” It is something done by men in obedience to God. He added that the Church of Pakistan recognizes that the CMA sets out in detail the law and procedure for solemnization of Christian marriages and mandates that it should be followed in letter and spirit. Nevertheless, the Church realizes that there may be circumstances in which the ideals of the Christian marriage cannot be attained at once, especially in the communities lately converted to Christianity. There are some cases where the Church’s Law should not be applied rigidly lest greater evils result. In such cases, subject to such general directions as may have been laid down by the Synod of the Church, the Bishops of the Diocese, in consultation with the Diocesan Committee appointed for this purpose, and

---

<sup>1</sup> Church of Pakistan is the union of the Anglican Church of Pakistan, the Methodist Church of Pakistan and the Pakistan Lutheran Church.

after due investigation of all the circumstances of the individual case, have the power to modify the strict letter of the law of the Church in sanctioning the solemnization of the marriages, or to relax the discipline of the Church on those who contract such marriages.

8. Advocate Saad Rasool, *amicus curiae*, contends that the CMA does not place an express restriction on the marriage of a minor if it is compliant with section 5 (Persons by whom marriage is solemnized) and does not contravene section 88 (Non-validation of marriages within prohibited degrees) of the CMA. As regards the question of absence of consent required under section 19 of the CMA, the learned *amicus curiae* submits that it would be a mere irregularity and would not render the marriage void.

### **Discussion**

9. The Christian Marriage Act 1872 and the Divorce Act 1869 are the principal family laws for Christians in our country. Every church has its precepts but these statutes prevail where there is a conflict.

10. The Petitioner has impugned the marriage of Respondent No.3 with Aleeza on two counts:

- i) it is in contravention of the “consent requirement” stipulated in section 19 of the CMA; and
- ii) it falls foul of the consanguinity and affinity clause of the CMA.

I’ll take up these issues *seriatim*.

### **Moot Point I**

11. Before considering the issue of parental consent raised by the Petitioner, it is necessary to examine the scheme of the CMA. This statute consolidated and amended the law relating to solemnizing the marriages of people professing Christianity. It consists of 88 sections. The first three sections are grouped under the heading “Preliminary,” while the remaining sections are divided into eight Parts. Section 3 is the interpretation clause and defines “minor” as a person who has not completed the age of twenty-one years and is not a widower or a widow. Parts III, V and VI contain provisions for marriages where one or both parties are minors. In Part III,

which bears the heading “Marriages solemnized by Ministers of Religion licensed under this Act”, section 19 enjoins that the father, if alive, or his guardian, if he is dead, and the mother of the minor, if there is no guardian, may give consent to the minor’s marriage. However, such consent is not required if the person authorized to give it does not reside in Pakistan. Sections 20, 21, and 22 describe how the person whose consent to the marriage is required under section 19 can prohibit the issuance of the certificate by the minister and how the latter should proceed when a notice prohibiting the marriage is issued. Part V contains provisions pertaining to marriages performed by or in the presence of a Marriage Registrar. Section 44 stipulates that the provisions of section 19 apply to any marriage under Part V in which either party is a minor. Anyone whose consent is required for such a marriage can enter a protest in the prescribed manner. When such a protest is filed, no certificate will be issued until the Marriage Registrar has examined the case and determined that it should be given. Part VI relates to the marriage of Native Christians, an expression, which as per section 3, includes the Christian descendants of the natives of Indo-Pakistan sub-continent converted to Christianity as well as such converts. Part VII prescribes penalties for various violations and offences under the CMA.

12. In the present case, the parties are governed by Part VI of the CMA as they are “Native Christians”. Section 60 lays down the conditions on which the marriages of that community may be certificated. Pertinently, it entitles the Native Christians to a wedding without recourse to any notices stipulated in Part III of CMA. It reads:

**60. On what conditions marriages of Native Christian may be certified.**— Every marriage between Native Christians applying for a certificate shall, without the preliminary notice required under Part III, be certified under this part, if the following conditions be fulfilled, and not otherwise:

- (1) the age of the man intending to be married shall exceed sixteen years, and the age of the woman intending to be married shall exceed thirteen years;
- (2) neither of the persons intending to be married shall have a wife or husband still living;
- (3) in the presence of a person licensed under section 9, and of at least two credible witnesses other than such person, each of the parties shall say to the other—

*“I call upon these persons here present to witness that I, A.B. in the presence of Almighty God, and in the name of our Lord Jesus Christ, do take thee, C.D., to be my lawful wedded wife or husband” or words to the like effect:*

Provided that no marriage shall be certified under this Part when either of parties intending to be married has not completed his or her eighteenth year, unless such consent as is mentioned in section 19 has been given to the intended marriage, or unless it appears that there is no person living authorized to give such consent.

13. Section 60 appears to deviate from the definition of “minor” given in section 3. It is necessary to refer to sections 4 & 5 of the CMA reproduced below to comprehend its meaning:

**4. Marriages to be solemnized according to Act.**– Every marriage between persons, one or both of whom is or are a Christian or Christians, shall be solemnized in accordance with the provisions of next following section; and any such marriage solemnized otherwise than in accordance with such provisions shall be void.

**5. Persons by whom marriages may be solemnized.**– Marriage may be solemnized in Pakistan:

- (1) by any person who has received episcopal ordination, provided that the marriage be solemnized according to the rules, rites, ceremonies and customs of the Church of which he is a minister;
- (2) by any Clergyman of the church of Scotland, provided that such marriage be solemnized according to the rules rites, ceremonies and customs of the Church of Scotland;
- (3) by any Minister of Religion licensed under this Act to solemnize marriages;
- (4) by, or in the presence of a Marriage Registrar appointed under this Act;
- (5) by any person licensed under this Act to grant certificates of marriage between Native Christians.

14. The Supreme Court of India considered sections 4, 5 & 60 of the Indian Christian Marriage Act of 1872 (which is analogous to the CMA) in **Lakshmi Sanyal v. Sachit Kumar Dhar** (AIR 1972 SC 2667). It held that section 5 is critical since the provisions of all the Parts must be read in light of it. The Court noticed that section 5 sets out five categories of persons who may solemnize marriages of Christians in India and added:

“It is noteworthy that so far as the last three categories are concerned express and elaborate provisions have been made when a minor is to be married. In cases of marriages solemnized by persons belonging to categories 1 and 4 the provisions are intended to ensure that the consent of the parents or the guardian should be obtained when a minor is going to get married. A minor would mean according to the definition given in section 3, a person who has not completed the age of twenty one years. With regard to a marriage solemnized by the person in category 5 dealt with in Part VI it is provided by section 61 (as stated before) that one of the conditions to be fulfilled is that the age of the man intending to be



married shall not be under 18 years and the age of the woman intending to be married shall not be under 15 years. According to the proviso to that section no marriage can be certified under Part VI when either of the parties intending to be married has not completed his or her 18th year unless such consent as is mentioned in section 19 has been given to the intended marriage or unless it appears that there is no person living or authorized to give such consent. It is apparent that in section 60 the age of minority when consent of the father or the guardian is necessary is 18 years whereas in sections 19 and 44 appearing in Parts III and V a person who has not completed the age of 21 years has been treated as a minor in whose case consent of the parents or the guardian is necessary. The making of separate provisions in Parts III, V and VI relating to marriage of minors and the requirement of consent of the parents or the guardian shows that each Part is meant to be self-contained. The categories of persons covered by those Parts and the provisions appearing therein cannot be applied to marriages solemnized by persons falling in categories I and II. Moreover in the aforesaid 2 categories (1 and 2) a person who can solemnize the marriage can do so only according to the rules, rites ceremonies and customs of the particular Church to which the Minister or the clergyman belongs. In other words if a marriage has to be solemnized by a Minister belonging to the Roman Catholic Church which will fall within category the is bound to follow only the rules, rites and ceremonies and customs of the Church to which he belongs and it is not possible to apply the provisions of Part III to him.”

15. In view of the above, the minimum age for a Native Christian man to enter into a marriage is 16 years and for a woman 13 years in terms of section 60 of the CMA. The consent requirement under section 19 is within the age bracket of 16 to 18 and 13 to 18 years respectively. The marriage can be solemnized in the presence of a person licensed under section 9 in the presence of at least two credible witnesses without the preliminary notice required under Part III. I agree with Mr. Saad Rasool that the CMA does not expressly prohibit the marriage of a minor if it is compliant with section 5 (Persons by whom marriage is solemnized) and does not violate section 88 (Non-validation of marriages within prohibited degrees).

16. The contention that the marriages performed without the required consent are void deserves short shrift for several reasons. Firstly, according to section 4 reproduced above, only those marriages between the Christians (or where one person is from that faith) are void which are solemnized in contravention of section 5. Lack of consent in terms of section 19 is not among the enumerated grounds. Secondly, the CMA is silent regarding the mode, manner and procedure governing the proceedings in which a marriage may be declared void. Thirdly, section 77 says that when a marriage is solemnized in accordance with the provisions of

sections 4 and 5, it is not void merely on account of irregularity in any of the five matters listed therein, which includes the consent of any person whose consent to such marriage is required by law. Fourthly, even with regard to solemnization of marriages to which sections 19, 44 and 60 are applicable, there is no provision that such marriages would be null and void. The person who solemnizes a particular marriage in violation of law is only liable to be punished. Lastly, the Divorce Act, 1869, sets out the statutory grounds for instituting a petition in the Civil Court for a decree of nullity of Christian marriage. Absence of consent under section 19 of the CMA is not one of those statutory grounds.

17. The birth certificates of Aleeza submitted by the Petitioner reflect that she was more than 13 years and 04 months at the time of her marriage. On 30.6.2021, she had her statement recorded under section 164 Cr.P.C. before the Magistrate First Class, Narowal, claiming that Respondent No.3 did not abduct her and she married him of her own volition. In view of what has been discussed above, her marriage is not vitiated for lack of consent under section 19 of the CMA.

### ***Child Marriage Restraint Act, 1929***

18. The Universal Declaration of Human Rights (1948) presents the “ideal of free human beings enjoying civil and political freedoms”.<sup>2</sup> Article 16(1) states that “men and women of full age, without any limitation due to race, nationality or religion, have the right to found a family. They are entitled to equal rights as to marriage, during marriage and its dissolution.” Article 23(1) of the International Covenant on Civil and Political Rights (ICCPR) asserts that the family is the natural and fundamental group unit of society and entitled to protection by society and State. Article 23(2) provides that “the right of men and women of marriageable age to marry and to found a family shall be recognized.” Article 10(1) of the International Covenant on Economic, Social and Cultural Rights (ICESR) also envisages the widest possible protection and assistance to the family. The Convention on Rights of the Child (CRC) (1989) focuses on the child and recognizes their right to comprehensive and harmonious personality development. Article 1 of CRC defines a child as every human being below the age of eighteen years unless

---

<sup>2</sup> Preamble of the International Covenant on Civil and Political Rights.



the age of majority is attained earlier under national legislation. Pakistan has ratified all three instruments.

19. Child marriages violate the rights of children and have far-reaching and long-term consequences for the child brides and grooms. This includes negative health consequences from early pregnancy and childbirth, mental health issues, and a lack of access to education and career opportunities for girls. Boys are ill-prepared for certain responsibilities such as providing for their families, becoming fathers at a young age, and having limited education and career opportunities. Albeit child marriages were common throughout history, they are now frowned upon. In December 2011 the United Nations General Assembly adopted a resolution (A/RES/66/170) declaring October 11 as the *International Day of the Girl Child*. As a result, on 11 October 2012, the first International Day of the Girl Child was observed with the theme of ending child marriage. In 2013 the first United Nations Human Rights resolution condemning child, early and forced marriages was passed. It declared child marriage as a violation of human rights and pledged to eliminate the practice as part of the UN's post-2015 global development agenda. In 2014 the United Nations Commission on the Status of Women issued a document that agreed, *inter alia*, to abolish child marriage. In 2019 the Global Campaign for the Prevention of Child Marriage was launched whose primary goal is to raise global awareness about the disadvantages of child marriages.

20. The Child Marriage Restraint Act, 1929, prohibits and criminalizes child marriage in Pakistan. Section 2 thereof defines "child" as a "person who, if a male, is under eighteen years of age, and if a female is, under sixteen years of age", and describes "child marriage" as "a marriage to which either of the contracting parties is a child." Furthermore, section 2 defines a "minor" as a "person of either sex who is under eighteen years of age." The said Act places responsibility for child marriage on three categories of parties: (i) the contracting party in the marriage with a child; (ii) the promoter of such marriage; and (iii) the guardian/parents.<sup>3</sup>

---

<sup>3</sup> *Muhammad Safeer v. Additional Sessions Judge (West) Islamabad and others* (PLD 2018 Islamabad 385).

21. The Act of 1929 applies to all citizens of Pakistan regardless of religion. Since Respondent No.3 has married a minor, he may be prosecuted under the Child Marriage Restraint Act. The case of **Mst. Bakhshi v. Bashir Ahmad** (PLD 1970 SC 323) is quite instructive although it pertains to a Muslim marriage. In the said case a 15-year-old girl, whose mother had remarried and whose father had died when she was quite young, had contracted a marriage of her own will. The mother lodged FIR accusing the daughter's husband of kidnapping her. After examining her medically, the doctor estimated the girl's age to be between 16 and 17 years old. The husband moved an application under section 491 Cr.P.C. before the High Court to obtain his wife's release. The High Court released the young girl and allowed her to choose who she wanted to live with. The Hon'ble Supreme Court upheld the decision noting that the husband or other persons who helped to solemnize the marriage could be charged with the crime but the marriage itself would not be void if a girl under the age of 16 married in violation of the Act of 1929.

22. In **Shahab Saqib v. Sadaf Rasheed etc.** (W.P. No.2355/2015), which arose from a family suit where the parties were Muslim, the Islamabad High Court observed that, historically, several relationships such as marriage and interactions within the family, were placed beyond the purview of public law and were governed by the personal law. Over time, the communities' individual religious convictions and edicts shaped their customs. Gradually the process of codifying community-based personal laws started to take hold. Therefore, the sources of law directing courts in making decisions in areas that normally fell within the ambit of personal law included codified statutory provisions and uncoded personal law. The benefits of maintaining certain relationships, such as marriage and the private affairs within it, have come under reconsideration. The State also determined that it has a legitimate interest in controlling these relationships. As a result, there is legislation on domestic abuse and, among other things, laws regulating marriage, divorce, and maintenance have been enacted. The Islamabad High Court added that "the Muslim Family Laws Ordinance, 1961, is one manifestation of the evolving jurisprudential approach with the State regulating relationships that erstwhile fell outside the public domain

and were treated as a private matter regulated in accordance with the customs as informed by the religious beliefs of communities.”

23. As adumbrated, the parties in *Shahab Saqib’s* case, *supra*, were Muslim. However, the Islamabad High Court’s observations therein would apply equally to other communities. Resultantly, the matters relating to marriage and divorce among Christians are to be regulated by CMA and the Divorce Act of 1869. It is important to note that the international treaties/conventions discussed above disapprove child marriage but do not declare them void. Further, if there is a conflict between municipal law and the treaty provisions, the former would prevail. In *Societe Generale De Surveillance S.A. v. Pakistan through Secretary, Ministry of Finance Revenue Division, Islamabad* (2002 SCMR 1694) the Hon’ble Supreme Court held that Article 175(2) of the Constitution mandates that no court has any jurisdiction unless conferred by or under any law or the Constitution. Therefore, unless a treaty is incorporated into the law so that it becomes part of the municipal law of the country, no court has the jurisdiction to enforce any right arising therefrom. Thus, the courts in Pakistan must give regard to the municipal legislation for the time being in force if it conflicts with international law provisions. However, for purposes of interpretation, where the express provisions of municipal law do not contradict the obligations undertaken by Pakistan by becoming party to a treaty or convention, it is to be assumed that the legislature never intended to set up municipal law in conflict with Pakistan’s obligations under international law.

24. Section 11 of the Contract Act, 1872, enjoins that only that person is competent to contract who has attained the age of majority according to the law to which he is subject. This makes it necessary to refer to the Majority Act, 1875 (the “Majority Act”). Section 3 thereof stipulates that every person domiciled in Pakistan shall be deemed to have attained his majority on attaining the age of 18 years. However, where a court has appointed or declared the guardian of the minor’s person or property, or both, or where the Court of Wards has assumed superintendence of his property, he attains majority on completing his age of 21 years. These provisions are subject to section 2 of the Act which reads as under:

**2. Savings.**— Nothing herein contained shall affect:

- (a) the capacity of any person to act in the following matters namely, marriage, dower, divorce and adoption;
- (b) the religion, religious rites and wages of any class of Her Majesty's subjects in Pakistan; or
- (c) the capacity of any person who before this Act comes into force has attained majority under the law applicable to him.

25. Section 2 of the Majority Act expressly excludes marriage and divorce from its application. A combined reading of this provision and section 11 of the Contract Act would show that they have no bearing on the capacity of a person to act in some matters, including marriage, which are left to be governed by the individual's personal law – unless the Parliament has enacted a special law in that regard. As a result, the CMA and the Divorce Act of 1869 govern Christian marriage and divorce in Pakistan. The Child Marriage Restraint Act, 1929, does not override them. It is a separate law that punishes those who are responsible for an under-age marriage but does not nullify the marriage itself.

**Moot Point II**

26. “Consanguinity” is a relationship by blood while “affinity” is a relationship by marriage. The attitudes of different major world religions towards consanguineous and affinity marriages are diverse. Even in the same religion the practices and beliefs of one community and sect may differ from those of the others. Section 88 of the CMA recognizes that Christians have similar divisions and prohibits validation of any marriage “which the personal law applicable to either of the parties forbids him or her to enter into,” which includes a marriage within the prohibited degree of consanguinity and affinity. In *V.H. Lopez v. E.J. Lopez*, (1885) ILR 12 Cal. 706, a larger Bench of the Calcutta High Court observed:

“The circumstances under which the British power became established in India, and the effect of those circumstances upon the laws applicable to the people of the country, have been often considered. It was authoritatively decided in *The Advocate-General of Bengal v. Ranee Surnomoyee Dossee*, 9 Moore's I.A. 387, and in other cases, that these circumstances had not been such as to introduce English law generally into India. And it certainly could not be contended that any of the rules of English law as to capacity to marry have ever become law for the people of India generally. If we limit the inquiry to Christians, we do not think it could be contended that the history of the British acquisitions has been such as, without more, to impose the English law of prohibited degrees upon all Christians in British India. It was held in *Abraham v. Abraham*, 9 Moore's I.A. 195, that Hindus adopting Christianity do not necessarily

change their laws of property, but may retain their old law, or adopt that of the class to which they attach themselves, or establish a customary law. And we think the same rule must be the correct one as to laws of marriage. But their Lordships lay down the rule only as to ‘matters with which Christianity has no concern.’ And we do not suppose the law could permit native converts (if one can imagine their desiring such a thing) to choose for themselves some marriage law wholly repugnant to Christian ideas – converts from Hinduism, for instance, to retain their former right to marry more wives than one, or converts from Mahomedanism their former freedom of divorce. With regard to the English men and women who settled here and their descendants, other consideration would apply.”

27. In the present case, the Petitioner has made only a bald statement that the marriage between Respondent No.3 and her daughter is void on the ground of consanguinity and affinity but has not furnished any details. She has also not appended any document with her petition to substantiate it. Even otherwise, since Respondent No.3 has controverted the Petitioner’s aforementioned contention, a factual inquiry is required to determine the truth which cannot be conducted by this Court while exercising jurisdiction under Article 199 of the Constitution. Reference in this regard may be made to ***Kaniz Fatima through legal heirs v. Muhammad Salim and 27 others*** (2001 SCMR 1493) in which the Hon’ble Supreme Court of Pakistan held:

“Even otherwise such controversial questions could not be decided by High Court in exercise of powers as conferred upon it under Article 199 of the Constitution of Islamic Republic of Pakistan. In this regard reference can be made to cases titled *State Life Insurance Corporation of Pakistan v. Pakistan Tobacco Co. Ltd.* (PLD 1983 SC 280); *State Life Insurance Corporation of Pakistan v. Pakistan Tobacco Co.* (PLD 1983 SC 280). The superior courts should not involve themselves into a thorough probe or an in depth investigation of disputed question of fact which necessitate taking of evidence. In our considered view this can conveniently and appropriately be done by the forums available in the hierarchy. The constitutional jurisdiction is primarily meant to provide expeditious and efficacious remedy in a case where illegality, impropriety and flagrant violation of law regarding impugned action of the authority is apparent and can be established without any comprehensive inquiry into complicated, ticklish, controversial and disputed facts.”

The above view was reiterated in a host of other cases, including ***Collector of Customs, Lahore and others v. Universal Gateway Trading Corporation and another*** (2005 SCMR 37); ***Haji Sardar Khalid Saleem v. Muhammad Ashraf and others*** (2006 SCMR 1192) and ***Dr. Sher Afgan Khan Niazi v. Ali S. Habib and others*** (2011 SCMR 1813).

28. For all the above reasons, this Court cannot consider the second ground mentioned in paragraph 10 above, for the decision of this petition which, as adumbrated, is in the nature of a *habeas corpus* petition.

***Disposition***

29. The jurisdiction of this Court under Article 199 of the Constitution can be invoked to secure the liberty of a person who is being held in custody without lawful authority or in an unlawful manner. Although Aleeza is a minor, her marriage with Respondent No.3 is not void. The police have investigated case FIR No.474/2021 and found that Respondent No.3 did not abduct her. The latter has also had a statement recorded under section 164 Cr.P.C. stating that she married him of her free will. There is no evidence to suggest that the marriage infringes the CMA's consanguinity and affinity clause. In this backdrop, this petition fails. No order as to costs.

**(Tariq Saleem Sheikh)**  
**Judge**

Announced in open court on \_\_\_\_\_

Judge

Naeem

Approved for reporting

Judge